THIS INDEPENDENT CONTRACTOR AGREEMENT (ICA) IS PROVIDED SOLELY AS AN EXAMPLE AND SHOULD NOT BE CONSTRUED AS LEGAL ADVICE. IT MAY NOT COMPLY WITH THE LAWS OR REGULATIONS OF YOUR STATE OR JURISDICTION. BEFORE USING OR RELYING ON THIS DOCUMENT, CONSULT WITH A QUALIFIED ATTORNEY TO ENSURE IT MEETS YOUR SPECIFIC LEGAL REQUIREMENTS.

[ADD LOGO]

Independent Contractor Agreement (ICA)

THIS AGREEMENT ("Agreement") entered into this _____day of _____, 20___, by and between _____, (hereinafter "Brokerage") and _____, (hereinafter "Licensee") (together the "Parties").

WITNESSETH

WHEREAS, Brokerage is doing business as a Real Estate Brokerage as a franchisee or affiliated company of Five D I, LLC dba United Real Estate, and is duly licensed therefore in all States where it operates.

WHEREAS, Brokerage contracts with independent contractors in connection with real estate for sale, lease or rental, and/or Brokerage locates prospective purchasers, lessees, and renters, and has and does enjoy the goodwill of, and a reputation for fair dealing with the public, and

WHEREAS, Brokerage maintains an office(s) which is/are properly equipped with furnishings and other equipment necessary and incidental to the proper operation of said business, for the benefit of Brokerage and its independent contractors, and

WHEREAS, Licensee now and for some time has been engaged in business as a real estate Licensee licensed by the State, and enjoys, and has in the past enjoyed, a good reputation for dealing fairly and honestly with the public as such a Licensee, and

WHEREAS, it is deemed to be to the mutual advantage of Brokerage and said Licensee to do business with each other within an independent contractor relationship in the manner hereinafter agreed to under the terms and conditions hereinafter set forth;

NOW, THEREFORE, in consideration of the mutual promises and agreements herein contained, the Parties agree as follows:

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1. **Independent Contractor Status**

This Agreement does not constitute a hiring by either of the Parties. Licensee is an independent contractor, and not an employee of Brokerage, so that Licensee retains absolute discretion and judgment in the way in which Licensee carries out listing and selling activities; provided, however, that Licensee agrees to carry out those activities in compliance with federal regulation, state law, any applicable rules and regulations, and according to Brokerage's policies and procedures. Brokerage has the right to demand Licensee to comply with state Real Estate Commission rules and regulations and the provisions of this Agreement. Licensee shall not be treated as an employee with respect to services and activities performed pursuant to this Agreement for Federal and State tax purposes. Brokerage shall not be liable for any obligation incurred by Licensee.

Further:

A. Licensee shall control and set Licensee's work hours, except that Brokerage shall be entitled to require attendance at orientation and/or other periodic training programs to ensure that Licensee is aware of, and is willing to comply with applicable laws, regulations, and Brokerage policies and practices. Licensee shall have no other obligation to attend training or sales meetings offered by the Brokerage, except for these or as otherwise agreed as a requirement for voluntary participation in. /with Brokerage Programs.

B. To ensure clear communication of compliance events, industry or Brokerage policies and/or practices, and other offerings, Licensee agrees to all forms of communication with Brokerage and/or United Real Estate , including but not limited to text, email, and telephone/cell phone, and understands that in order to maintain such clear communication, **Licensee will not, at any time, "opt-out" of any form of communication from Brokerage or United Real Estate.**

C. Licensee shall not be required to wear a uniform or other attire containing Brokerage's markings, branding, or logo, and further, Licensee shall be able to select appropriate business attire that is customary within the real estate industry.

D. Licensee shall have the right to hire and terminate Licensee's own employees and other independent contractors on their team in connection with this Agreement without the consent of Brokerage; provided, however, that Licensee shall be responsible for ensuring any such employees and independent contractors are not affiliated with a competing Brokerage, and that they comply with applicable laws, regulations, and Brokerage policies. Only the Brokerage can add and terminate other Licensee's.

E. All right, title, and interest in work product developed by Licensee shall be the property of Licensee and not Brokerage.

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F. Any concentration of Licensee's income derived from the Brokerage is the result of the Licensee's sole effort and shall not constitute an employment relationship between the parties. Licensee is responsible for negotiating any compensation received in a transaction. See further, Section 6. Compensation. Any compensation disbursed by Brokerage to Licensee shall not constitute an employment relationship between the Parties. Licensee is responsible for the payment of his/her own federal income taxes and his/her own self-employment taxes (FICA) together with any state, county, and local taxes. See further, Section 7. FICA, Taxes and other Withholdings.

Notwithstanding the foregoing:

i. Brokerage has no requirement that Licensee must make offers to or must accept offers of compensation from Buyer Brokers or other Buyer representatives or that, if made, such offers must be blanket, unconditional, or unilateral;

ii. Licensee must provide a written disclosure (in Listing Agreements, Buyers Agreements and Preclosing documents) to its clients/customers with conspicuous language expressly stating that broker compensations are not set by law and are fully negotiable;

iii. If acting as a Buyer Representative, Licensee shall not advertise or otherwise represent that their services are free, unless they will receive no financial compensation from any source for those services;

iv. If Licensee is acting as a Buyer representative, they must enter into a written agreement Prior to touring homes with/for the Buyer.

v. Licensee must timely disclose to their client/customer, any offer of compensation, if existent, made to a Buyer Agent by the seller;

vi. Licensee shall not utilize any technology or take manual actions to filter out or restrict listings that are searchable by and displayed to consumers based on the level of compensation offered to any cooperating broker, unless directed to do so by their client/customer;

vii. Licensee shall eliminate any internal system or technology that facilitates filtering out or restricting listings based on level of compensation offered to any cooperating broker;

viii. If acting as a Buyer Representative, Licensee has an obligation to show properties regardless of the existence or amount of compensation offered to Buyer brokers or other Buyer representatives provided that each such property meets the Buyer's articulated purchasing priorities.

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2. **Brokerage Relationship**

All listings representation agreements, compensation agreements, and **ALL** other agreements for brokerage services in which Brokerage is named as a party are owned exclusively by Brokerage.

Brokerage agrees to make available to Licensee all its current listings and other information in relation to prospective purchasers, lessees, or renters and to assist Licensee in his/her work by rendering full cooperation in every way possible. Nothing in this Agreement shall be construed to require that Licensee accept any particular listing or prospective listing suggested by Brokerage, nor shall Brokerage have the right or authority to direct Licensee to see particular parties, accept clients/customers or restrict Licensee's activities to particular parties or particular areas.

3. **Employment Status**

Licensee is an Independent Contractor. As such, Licensee shall not hold Licensee out as an employee of Brokerage to any third party, including, but not limited to prospective buyers, prospective sellers, real estate professionals, title companies, lenders, or taxing authorities. However, as a Licensee sponsored by Brokerage and a representative of Brokerage, Licensee agrees to conduct business so as to maintain and to increase the goodwill and reputation of Brokerage. Licensee agrees to do nothing, either privately or publicly, that reflects negatively upon the reputation of the Brokerage and to strictly maintain the confidentiality of all systems and communications of the Brokerage. Notwithstanding the foregoing, the parties agree that this is an independent contractor relationship and not a partnership, joint venture, or employment agreement.

Brokerage shall not be responsible for any benefits, to expressly include pension, health, 401(k) plans, vacation pay, sick pay, FMLA, or any other benefits that are customarily excluded from independent contractor relationships.

4. **Brokerage Policy Manual**

Licensee agrees to follow Brokerage's policy manual, which all current and future revisions thereof are fully incorporated herein by reference, to maintain confidentiality of that document, and to perform duties according to the Brokerage's policies and procedures. To the extent there is conflict between this ICA and the Policy Manual, this agreement shall prevail.

5. **Licensee Aid**

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To aid Licensee in its compliance with this Agreement, Brokerage offers office manuals and forms, sales meetings, training opportunities, and may also offer administrative equipment if available.

6. **Compensation**

Licensee shall complete their W-9 and provide their fee payment source, as well as their direct deposit information, immediately as of the effective date of this Agreement and update this information with Brokerage in a timely manner, should any of the provided information change.

For the purposes of this Agreement, the term "compensation" shall include all commissions, fees, bonuses, and any other valuable consideration paid or given in connection with the following: (a) performance of real estate brokerage services (as defined by state law); and (b) the performance by Licensee of any permitted real estate settlement service (as that term is defined by federal law). Brokerage shall pay compensation to Licensee in accordance with Brokerage's Compensation & Fee Schedule. **The Compensation & Fee Schedule is subject to change by the Brokerage upon 30 days written notice to Licensee. Such written notice shall constitute acceptance of such changes by all currently affiliated Licensees**.

Licensee's compensation shall be entirely from compensation paid by clients to Brokerage (to include Brokerage referral agreements or licensed agent assistance duties) and shall not be due to Licensee until the transaction is closed, compensation is received by Brokerage and the file is complete as defined by the Brokerage. If a commission goes unclaimed or the transaction file remains incomplete for 180 days following the close of the transaction, the Licensee will forfeit their commission to the Brokerage. Licensee must have an active real estate license from the time of listing through the time of closing a transaction. **[ADD TO ICA OR MODIFY THE FOLLOWING LANGUAGE, IF STATE ALLOWS: If Licensee does not have an active license at any time from the date of listing through the date of closing of a transaction, then Licensee understands and agrees that his/her compensation is hereby forfeited and has no rights or claims to any further compensation for that transaction regardless of when their license is renewed or reinstated.]**

Licensee must deliver any compensation for Brokerage services, or any money belonging to others, received from another agent, any client, customer, bank, title company, escrow agent, prospect, or any other person, to Brokerage immediately upon receipt for disbursement in accordance with this Agreement and the terms of the connecting contract. Unless otherwise authorized by Brokerage, Licensee may **not accept** any check made payable to Licensee from any customer, client, bank, title company, escrow agent, prospect or any other person who Licensee may deal in a matter related to Brokerage's real estate business including, but not limited to BPO fees (Broker Price Opinions).

Brokerage shall advise the Licensee of any special contract terms relating to any particular transaction which Licensee undertakes to handle. When the Licensee performs any service hereunder whereby compensation is earned, said compensation shall, when collected, be

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divided between Brokerage and Licensee according to the Brokerage's Compensation & Fee Schedule.

In the event that two or more duly licensed individuals participate in performing a service for which compensation is payable, or claim to have done so, the amount of the compensation over that accruing to Brokerage shall be divided between the participating individuals according to agreement between them.

Brokerage shall have the sole and final authority to decide: (1) whether or not to pursue any compensation collection and/or settle any disputed compensation claim; (2) all questions regarding the entitlement to a compensation between Licensee and any other Brokerage or Licensee; and (3) whether Licensee initiated, consummated or was the procuring cause of any real estate transaction. Suits and other actions for compensations and/or expenses and costs incurred by Licensee in connection with a real estate transaction shall only be maintained in the name of Brokerage.

In no case shall Brokerage be personally liable to Licensee for any compensations, but when the compensation shall have been collected from the party or parties for whom the service was performed, said Brokerage shall hold the same in trust for Licensee and itself to be divided according to the Compensation & Fee Schedule, other special contract terms and/or after any applicable withholdings, including but not limited to brokerage fees, referral fees and court ordered garnishments.

Offset of Debts Against Commission. Brokerage shall have the right to deduct from any compensation, commission, or other amounts payable to Licensee under this Agreement any outstanding fees, charges, or other amounts owed by Licensee to Brokerage, including but not limited to desk fees, technology fees, insurance fees, transaction fees, or other amounts due under this Agreement or any other agreement between Licensee and Brokerage. In the event that the compensation due to Licensee is insufficient to cover such outstanding amounts, Licensee shall remain liable for the balance, which shall be payable to Brokerage upon demand. Licensee hereby authorizes Brokerage to make such deductions and acknowledges that such deductions do not alter the independent contractor relationship between the Parties.

Licensee shall have no authority to bind Brokerage by any promise or representation, unless specifically authorized in a particular transaction; but the expense of attorney's fees, costs, transfer tax, title abstracts and the like which must, by reason of some necessity, be paid from the compensation, or are incurred in the collection of, or the attempt to collect the compensation, shall be paid by the parties in the same proportion as provided for herein in the division of the compensation.

In the event that this contract is terminated, Licensee's share of any compensation (in accordance with the current Compensation & Fee Schedule) on any transaction where funds are not yet collected, shall, upon receipt of funds, be paid by the Brokerage to the Licensee. However, if said transactions require additional work normally rendered by a Licensee,

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Brokerage may perform the required work either directly or through another Licensee of Brokerage and deduct from Licensee's share of the compensation the reasonable value of said work as may be determined in the sole discretion of Brokerage.

Licensee acknowledges that claims regarding entitlement to compensation may be asserted against Brokerage by outside parties after Licensee has been paid his or her share of the compensation. Licensee agrees to immediately reimburse Brokerage for his or her pro rata share of any compensation amount paid to Licensee in error and/or later ordered to be refunded, returned or paid to another party by a duly authorized mediator, arbitrator, arbitration panel, or court of competent jurisdiction. In addition, Licensee agrees to reimburse Brokerage for any legal expenses and other expenses it may incur in connection with a claim or in seeking reimbursement from Licensee. This obligation on the part of Licensee shall survive the termination of this Agreement and may be subject to collection proceedings.

7. **FICA, Taxes, and other Withholdings**

Licensee acknowledges and agrees that all of Licensee's remuneration will be based upon compensation income from Licensee's production and output as opposed to the number of hours Licensee may work and that Licensee will not be paid on an hourly basis or for time expended. Licensee acknowledges that Licensee will not be treated by Brokerage as an employee with respect to the services performed hereunder by Licensee for federal tax purposes and, specifically, that Brokerage will not be contributing to FICA in regard to Licensee or paying taxes on behalf of, or withholding federal, state, county or local taxes with respect to, Licensee. Instead, Licensee will be treated in all respects as a "Statutory Non-Employee" for federal tax purposes and as an independent contractor for ALL federal, state, county and local taxes. Licensee also acknowledges and agrees that, as an independent contractor acting for Brokerage, Licensee is responsible for the payment of all of Licensee's own federal income taxes and Licensee 's own self-employment taxes ("FICA") together with any and all corresponding state, county and local taxes, if any, and Licensee hereby agrees to satisfy in full all such responsibilities and to do so in a timely manner. Licensee hereby waives any claims Licensee has or may have against Brokerage now or in the future respecting such taxes and the right of Brokerage not to withhold, not to pay and not to contribute to such taxes on behalf of Licensee. Finally, Licensee agrees not to engage in any compensation arrangement in connection with any real estate service contract or other contract that would be contrary to the above acknowledgements and agreements.

Brokerage shall not make any unemployment compensation contributions on behalf of or for the benefit of Licensee, nor shall Brokerage make any state or federal unemployment compensation payments on behalf of or otherwise for the benefit of Licensee.

8. **Expenses**

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Brokerage shall not be liable to Licensee for any expenses incurred by Licensee or for any of Licensee's acts or omissions, nor shall Licensee be liable to Brokerage for general office expenses or for any of Brokerage's acts or omissions.

Licensee shall be responsible for ALL of Licensee's expenses related or associated with the provision of the services under this Agreement.

9. **Errors and Omissions Insurance**

Licensee will be required to pay an Errors and Omissions (E&O) fee for each transaction. The E&O fee will be determined by Brokerage yearly and published by written notice to Licensee if a change has been made. This single paragraph does not apply in States where agents are required to carry their own personal E&O policy, unless Brokerage has negotiated for coverage in said State(s). In such States, Licensee must maintain E&O coverage at all times, **meeting or exceeding the limits of $500,000 per claim and $1,000,000 Aggregate Limit**, with Brokerage and Five D I, LLC dba United Real Estate listed as an additional insured for vicarious liability and provide Brokerage with a copy of their E&O policy at the time this Agreement is signed and on each renewal period of the E&O policy.

With respect to all E&O Insurance, Brokerage expressly reserves the right to control the defense of any claim submitted to the E&O insurer, including the decision whether to settle or not to settle any claim. In addition, Licensee is responsible for fully participating in any record keeping, record requests and communication during the claims process. Licensee agrees to be bound by the decisions of Brokerage for all claims made on the E&O policy. Licensee agrees to be responsible for all legal fees and insurance deductibles arising from any claim. This shall specifically include all expenses and insurance deductibles incurred by Brokerage as a result of any claim related to Licensee.

For any ancillary service or business conduct provided by Licensee independent of Licensee's representation and services offered on behalf of Brokerage, Licensee agrees that it must maintain a separate E&O policy, name Brokerage and Five D I, LLC, dba United Real Estate as an additional insured to that policy for vicarious liability, and provide a Certificate of Insurance to Brokerage evidencing the same. All such business activity must first be disclosed to Brokerage and is subject to approval, which approval may be revoked at any time. Licensee agrees to fully indemnify Brokerage from any such ancillary service it may offer.

NOTE: Many E&O policies carry business sales, personal interest, agent-owned, and/or agent-interest property exclusions. It is Licensee's responsibility to conduct the appropriate annual review of policy coverage to ensure coverage protection and best practices to ensure proper coverage prior to conducting any transaction which might involve Licensee's interest, personally or otherwise, in a property. This may include but is not limited to property owned by Licensee, property owned by a relative of Licensee who Licensee is representing, or any entity in which licensee may have ownership interest or control, regardless of degree of control.

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10. **Other Insurance**

Except for Brokerage offered E&O, Brokerage will not obtain insurance on behalf of or for the benefit of Licensee, to expressly include liability umbrella policies, workers' compensation insurance, automobile insurance, property insurance, renter's insurance, or casualty insurance.

Licensee must carry minimum limits of $100,000/$300,000/$100,000 on automobile insurance and show Brokerage as additionally insured for vicarious liability.

Licensee releases Brokerage from any and all claims Licensee may have or ever have for work-related injuries and acknowledges that, because of the independent contractor status, Licensee is not entitled to be compensated under State Worker's Compensation law and expressly waives any right or claim thereto. Licensee further acknowledges that Licensee is aware of Worker's Compensation coverage available to Licensee as a self-employed contractor directly from an insurance carrier.

11. **Legal and Ethical Compliance**

When delivering brokerage services to prospects and when otherwise performing under this agreement, the parties agree to comply with all applicable laws, ethical code(s) of conduct, and standards of practice. It is the responsibility of the Licensee to determine the appropriateness of the same.

Licensee shall at all times maintain an active real estate license and in good standing with the state's Real Estate Commission while conducting real estate agent and brokerage services.

12. **Artificial Intelligence (AI) Tools, Content, and Compliance**

A. Use of AI Tools.

Licensee may use AI tools for drafting, marketing, advertising, and client communications **only in accordance with Brokerage's AI Policies, Guidelines & Procedures**. All AI-generated content must be reviewed, fact-checked, and approved by Licensee prior to publication or use.

B. Human Oversight.

AI tools may assist in drafting content, but Licensee is responsible for final review and approval. Licensee must maintain an AI Review Log with source notes for all AI-generated materials, as required by Brokerage policy.

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C. Privacy and Data Security.

Licensee shall not upload contracts, sensitive personal information (PII), or nonpublic client data into non-approved AI tools. Licensee must comply with all privacy laws, including but not limited to CCPA/CPRA and state breach notification laws, and follow Brokerage data handling rules. Licensee shall not load proprietary Brokerage or United Real Estate information into an AI tool.

13. **Advertising**

Brokerage and Licensee agree to coordinate all advertising related to Brokerage's business, including brokerage services performed by Licensee. In all cases, advertising is to be submitted in content, design and format to be approved by Brokerage. Any use of Brokerage's brand, logo, or other intellectual property use is subject to Brokerage's prior approval.

"Advertising" includes any written or oral statement which is intended to induce the public to use Licensee's or Brokerage's services, and includes without limitation all publications, newsletters, radio or television broadcasts, all electronic media including e-mail, texts, social media, and the internet, business stationery, business cards, signs, and billboards.

A. Permitted Uses of Brokerage Marks.

Licensee acknowledges that Licensee has the right to use the Brokerage Marks pursuant to, and solely in accordance with this agreement and Brokerage's policies. Licensee understands and agrees that Licensee is not being granted a license, and has no independent right, to use of any of the Brokerage Marks, but rather that by virtue of a Limited License, Licensee may use the Brokerage marks on Brokerage's behalf and under Brokerage's supervision, when acting in Licensee's capacity as a real estate sales associate exclusively for Brokerage. Licensee further understands that all use by Licensee of the Brokerage Marks on behalf of Brokerage inures exclusively to the benefit of the Brokerage. Licensee agrees to use the Brokerage Marks only in connection with Brokerage's name and address and in accordance with all other requirements set forth by Brokerage in its operating policies.

B. Prohibited Uses of Brokerage Marks and Brokerage Name.

Licensee is not authorized to and shall refrain from using Brokerage's name or the Brokerage Marks: (i) in connection with any business other than the real estate brokerage business of Brokerage; (ii) in conjunction with the name or photo of any licensed person who is not affiliated as a Licensee with Brokerage; (iii) in the name of any "team" of agents or of any entity, group, network or association other than affiliated with Brokerage; (iv) in the name of or in connection with activities comprising an office/agent locator service as defined by Brokerage operating policies (this specifically prevents Licensee from attempting to "claim ownership" of an Brokerage

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office location on Google or other search engine); (v) in the name of or in connection with activities comprising a private referral network as defined by Brokerage operating policies; (vi) in conjunction with any third party service that competes directly with a service offered by Brokerage or to the public, or affiliates of Brokerage; (vii) in any telephone directory or other directory listing, including without limitation, yellow pages display advertising or any Internet directory listing, that does not comply with Brokerage operating policies; (viii) on or in connection with any Internet website that functions for any purpose other than the promotion of the real estate business of Brokerage or that does not include the office name and address of Brokerage; (ix) in connection with the offering of real estate related services in market areas that Brokerage does not serve personally and directly; (x) in connection with any real estate related services that do not meet the standards of quality and professionalism in Brokerage's market area; or (xi) in any other manner not approved by Brokerage or that is not in compliance with, or is prohibited by Brokerage operating policies. In addition, marketing uses of brand name are strictly prohibited. Violation of any of these stipulations is grounds for termination of contract.

In addition, it is Licensee's responsibility to be familiar with, adhere to and comply with local and regulatory advertising laws, including **but not limited** to:

TCPA. Telephone Consumer Protection Act. This law restricts telemarketing certain phone calls and text messages. It also places restrictions on the use of automatic dialing systems and artificial or prerecorded voice messages.

CAN-SPAM. Controlling the Assault of Non-Solicited Pornography and Marketing Act. This law sets the rules for commercial email, establishes requirements for commercial messages, gives recipients the right to have you stop emailing them, and provides tough penalties for violations.

Copyrights in Photographs, Listing Descriptions, or other Media. With respect to photographs, listing descriptions or other media ("Materials) that Licensee supplies to Brokerage, to the extent the copyright in the Materials is owned by Licensee, Licensee grants Brokerage a fully paid up and royalty-free license and right to use and sub-license such Materials for any purpose Brokerage deems appropriate in any media now in existence or hereafter created. To the extent that Licensee does not own the copyright in such Materials, Licensee represents and warrants that it has permission to use such Materials in its advertising efforts and to authorize the uses contemplated by this paragraph and agrees to indemnify and hold Brokerage harmless against any claims by any third party that Brokerage's use infringes upon such third party's rights, including but not limited to copyrights and rights of publicity. The license and other provisions of this paragraph shall survive termination or expiration of this Agreement with respect to any listings not released.

National Do Not Call Registry. This is regulated by the Federal Trade Commission and is designed to protect consumers from unwanted calls. It is Licensee's responsibility to ensure

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he/she does not solicit business in violation of the protections offered to those registered on this list or any equivalent list.

Licensee agrees to indemnify and hold harmless Brokerage, their officers, directors, employees, heirs, successors and assigns from and against any and all liability against fines, penalties, attorney fees, and related costs and expenses arising out of or in connection with any violation by the Licensee and any person, firm or legal entity acting on the Licensee's behalf, of: (1) The National Do Not Call Registry or equivalent list, including all laws and regulations related thereto. (2) the TCPA, and/or CAN-SPAM Act, including, but not limited to, failure to provide recipients rights to opt-out from further communications and (3) violation of Copyright privileges afforded to the owner of intellectual property.

Fair Housing Act (FHA). The FHA protects people from discrimination when they are renting or buying a home, getting a mortgage, seeking housing assistance, or engaging in other housing-related activities. FHA prohibits discrimination in housing because of race, color, national origin, religion, sex (including gender identity and sexual orientation), familial status, and disability.

14. **Full Disclosure**

Licensee shall notify Brokerage immediately upon the receipt of any information, oral or written, that alleges a claim or potential claim, issues a demand, or otherwise asserts wrongdoing against Licensee or Brokerage. Notwithstanding the foregoing, Licensee shall indemnify Brokerage from all losses, damages, and claims, and further Licensee agrees to defend Brokerage at Licensee's cost in the event a claim is made, against Brokerage based on Licensee's conduct within and outside the scope of this Agreement.

15. **Alternative Dispute Resolution**

This Agreement shall be governed by the laws of the State where the Brokerage operates. In the event any portion of this Agreement is found to be void, it shall not affect the remaining provisions of said Agreement and such remaining provisions shall remain in effect and be binding on the parties hereto. In addition, to the extent any provision is deemed void or unenforceable, the parties agree that any court of competent jurisdiction shall interpret this Agreement in a manner that upholds the intent of this Agreement.

Notwithstanding the foregoing, if a controversy or claim should arise out of or related to this Agreement, the Parties will attempt in good faith to resolve such controversy or claim by negotiation. If the matter has not been resolved within thirty (30) days by negotiation, the controversy shall be settled by binding arbitration in accordance with the then-existing rules of the American Arbitration Association. The Parties agree and understand that the arbitrator shall have all powers provided by law and this Agreement, including authority to grant any legal and equitable remedies. The Parties agree that there shall be no pre-arbitration discovery and the arbitrator shall not award punitive damages to either of the parties. Judgment may be entered in any court having

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jurisdiction and the parties' consent to the jurisdiction where Brokerage operates for this purpose. If the disputing parties agree on one arbitrator, the arbitration shall be conducted by such arbitrator. If the disputing parties do not agree on an arbitrator, then each Party shall select one independent, qualified arbitrator and the two arbitrators so selected shall select the third arbitrator. At the request of either Party, the arbitration proceedings will be conducted in the utmost secrecy; in such case all documents, testimony and records shall be received, heard and maintained by the arbitrators, as the case may be, in secrecy under seal, available for the inspection only by the disputing Parties and their respective attorneys and their respective experts who shall agree in advance and in writing to receive all such information confidentially and to maintain such information in secrecy until such information shall become generally known.

LICENSEE VOLUNTARILY AND KNOWINGLY WAIVES ANY RIGHT TO A JURY TRIAL, EITHER PURSUANT TO ARBITRATION OR COURT ACTION.

The Parties agree under this Agreement that Licensee shall be responsible for all costs as a result of arbitration.

16. **Miscellaneous**

A. Loyalty. At all times during the term of this Agreement, Licensee shall act under a duty of loyalty in support and in furtherance of Brokerage Standards and shall maintain a proper attitude toward the public, Brokerage, and Licensee's fellow Brokerage Sales Associates. Licensee shall not engage in any acts or activities that disrupt the Brokerage office or are likely to adversely affect the image of Brokerage, or that may detract from or tend to undermine the growth of the Brokerage, including without limitation, any acts in furtherance of any non-Brokerage business or the establishment of, or acquiring an investment or ownership interest in, any non-Brokerage business or the recruiting of any Brokerage Licensee for any existing or future non-Brokerage business which does or may compete with Brokerage. Any breach of this paragraph will constitute a material breach of this Agreement.

B. Sexual Harassment Policy. Brokerage believes in an inviting, comfortable, safe and uplifting work environment. Harassment of Brokerage employees, applicants, agents, associates, customers or clients is unacceptable. The term "harassment" includes, but is not limited to, slurs, jokes, and or other verbal, graphic or physical conduct relating to an individual's race, color, sex, religion, national origin, age or disability. "Harassment" also includes sexual advances, requests for sexual favors, offensive touching and other verbal, graphic or physical conduct of a sexual nature. No person associated with the Brokerage has the authority to suggest to any Licensee, associate, employee or applicant that the individual's association, awards, or future advancement will be affected in any way by the individual's entering into (or refusing to enter into) any form of personal relationship with a person. If a Licensee believes that a person associated with Brokerage, including other Licensees, agents, associates, employees, customers or vendors has acted inconsistently with this Policy, they should bring this to the attention of the Brokerage immediately. Licensees will not be penalized in any way for reporting

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such improper conduct. All complaints will be held in strict confidence and disclosure of details will be limited to the parties involved.

C. **RESPA.** Licensee acknowledges the Real Estate Settlement Procedures Act (RESPA) is a federal law that provides consumers with improved disclosures of settlement costs and to reduce the costs of closing by the elimination of referral fees and kickbacks, including, restrictions on offering compensation directly or indirectly for the same. Licensee agrees to conduct its business in full compliance with RESPA regulations when co-marketing with settlement service providers and agrees to indemnify Brokerage in any action that may arise from Licensee's violation of this Act.

D. **Indemnification and Hold Harmless**. As a material provision of this Agreement, Licensee agrees that it shall be solely and exclusively responsible for any fines, taxes, penalties, interest, costs, expenses, damages, loss or liability, of any kind or nature, arising out of any demands, suits, actions, proceedings or claims (collectively "Claims") relating to or arising out of Licensee's real estate business endeavors on behalf of Brokerage or Licensee's other conduct or activities even if such Claims are brought or filed after termination of this Agreement.

Licensee agrees to indemnify, defend and hold Brokerage and Five D I, LLC dba United Real Estate, as well as each of its officers, directors, shareholders, partners, employees and agents, harmless from and against, and to reimburse them for, all fines, taxes, penalties, interest, costs, expenses, damages, loss or liability for which any of them are held liable or which they reasonably incur in connection with any Claims including, without limitation, the full amount of any errors and omissions insurance deductible, actual and consequential damages, reasonable attorneys' fees, court costs, expert witness fees and litigation expenses.

Brokerage reserves the right to select the attorney(s) and the right to settle or defend any Claims in any manner or on any terms Brokerage, in Brokerage's sole discretion, deems appropriate. Licensee agrees to cooperate with Brokerage in the defense of any Claims and agrees not to settle or compromise any Claims, without prior written consent of Brokerage.

Maintenance of any insurance required by this Agreement shall not relieve Licensee of Licensee's indemnification obligations under this paragraph. The obligations of Licensee under the provisions of this shall survive termination of this Agreement and any Renewal of this Agreement.

No action or complaint arising out of a real estate transaction in which Brokerage was involved may be brought by Licensee before anybody or against any third party without prior written consent of Brokerage. If Brokerage initiates any litigation or arbitration action on behalf of Licensee or if Brokerage must defend any action of Licensee in litigation or arbitration, in addition to other amounts that Licensee may owe Brokerage

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under this Paragraph, Licensee will pay Brokerage all related filing fees, costs and attorney's fees. All other indemnification and hold harmless provisions contained in this Agreement are in addition to and not in substitution of the provisions of this Paragraph.

E. **Assignment of Rights**. This Agreement shall be binding upon and inure to the benefit of Licensee, Brokerage and any parents, subsidiaries, affiliated companies, successors or assigns of the Brokerage, which assignments Brokerage may make from time to time. Licensee's obligations under this Agreement also shall be binding upon Licensee's heirs, executors and assigns.

17. **Term and Termination of Agreement**

This Agreement shall remain in effect on a perpetual basis unless and until replaced by a new written agreement executed by the parties. Either party may terminate this Agreement, with or without cause, by providing written notice to the other party.

Upon termination of this Agreement, all negotiations and other brokerage services commenced by Licensee before termination will be assumed by Brokerage, at its sole discretion. Licensee will cooperate with Brokerage to provide for an orderly transition and assumption of such service by Brokerage.

18. **Amendments by Notice**

Brokerage may amend this Agreement by delivering written notice of the amendment to Licensee. Except as provided below, amendments will be prospective only and become effective 30 days after delivery of the notice. Continued engagement in activities under this Agreement after the effective date of the amendment constitutes acceptance. No additional signature or written acknowledgment by Licensee shall be required.

Good-Faith Standard. Brokerage will implement amendments in good faith and in a commercially reasonable manner, and will not apply amendments retroactively.

Delivery of Notice. "Written notice" may be delivered by email or client portal message and will be deemed received upon the earlier of actual receipt or two business days after sending.

This Section will be enforced to the maximum extent permitted by Applicable Law; if any portion is found unenforceable, it will be narrowly construed or severed without affecting the remaining provisions.

19. **Post-Termination of Agreement**

License shall not, after termination of this Agreement, use to Licensee's own advantage, or the advantage of any other person or corporation, ANY information gained for or from the files or documentation of Brokerage.

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Further, Licensee shall (1) cease all negotiations and other dealings that concern Brokerage's business commenced by Licensee before this agreement ends; (2) provide Brokerage with a written list of all current listings and pending sales and leases; (3) turn over to Brokerage all files related to Brokerage's business that Licensee might have or control; and (4) turn over to Brokerage all Brokerage's personal property including but not limited to signs, equipment, supplies, manuals, forms, and keys.

Further:

A. Waiver. No waiver of any breach of any provision or condition of this Agreement shall constitute a waiver of any subsequent breach of the same or any other provision or condition of this Agreement.

B. Applicable Law. This Agreement shall be governed and construed in accordance with the laws of the state Brokerage resides in, without reference to its conflict of law provisions.

C. Severability. The invalidity or unenforceability of any particular word, sentence, paragraph, subparagraph or provision of this Agreement shall not affect the validity or enforceability of the other words, sentences, paragraphs, subparagraphs or provisions of this Agreement and this Agreement shall be interpreted in all respects as if such invalid or unenforceable parts were omitted.

D. Binding Nature. This Agreement shall become binding upon and inure to the benefit of the parties, and their heirs, beneficiaries, trustees, executors, administrators, successors and assigns.

E. Assignment. This Agreement may not be assigned, pledged or otherwise transferred by Licensee. Brokerage reserves the right to assign, pledge, or transfer this Agreement, provided that Licensee's rights and privileges granted in this Agreement shall not be adversely affected.

F. Gender. All terms in this Agreement used in any one number or gender shall extend to mean and include any other number and gender as the facts, context or sense of this Agreement or any Paragraph of this Agreement may require.

BROKERAGE	LICENSEE
By: _____	By: _____
Print Name: _____	Print Name: _____
Date: _____	Date: _____

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